

Jatin vs State Of Haryana And Another on 28 August, 2024

Neutral Citation No:=2024:PHHC:111389

CRM-M-29613-2024

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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

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CRM-M-29613-2024

Date of Decision : August 28, 2024

JATIN

- PETITIONER

V/S

STATE OF HARYANA AND ANOTHER -RESPONDENTS

CORAM: HON'BLE MR. JUSTICE KULDEEP TIWARI

Present: Mr. Kamaldeep Singh Redhu, Advocate
for the petitioner.

Mr. Abhinash Jain, D.A.G., Haryana.

Mr. Sunil Goswami, Advocate for
Mr. Harender Singh, Advocate
for the respondent No.2.

KULDEEP TIWARI, J. (ORAL)

1. Through the instant petition, as cast under Section 482 of the Cr.P.C., the petitioner craves for the hereinafter extracted relief(s):-

"Quashing of the FIR No.512 dated 04.09.2022 (Annexure P1), under Sections 323, 506, 34 of the IPC, 1860, registered at P.S. Shiv-aji Colony, Rohtak, along with all the consequential proceedings arising therefrom, on the basis of Compromise/Joint Statement dated 14.05.2024 (Annexure P2), as recorded in proceedings under Section 13-B of the Hindu Marriage Act, 1955."

2. Upon an affirmative response from the learned counsel for the re-

spondent No.2 qua the compromise, this Court had, through drawing an order on 11.06.2024 upon the instant petition, directed the parties to appear before the trial Court/Illaq Magistrate

concerned, for getting their respective statements recorded qua authenticity of the compromise (Annexure P2). Moreover, the trial 1 of 7 Neutral Citation No:=2024:PHHC:111389 Court/Illaqa Magistrate concerned was also directed to send a report in the above regard.

3. Consequent to the making of the directions (supra), the parties ap-

peared before the Judicial Magistrate 1st Class, Rohtak and got their respective statements recorded, thereby authenticating the compromise (Annexure P2). Ac-

cordingly, in compliance of the directions (supra) of this Court, a Report has been received from the Judicial Magistrate 1st Class, Rohtak, wherein, a satisfaction has been recorded by the Magistrate concerned qua the compromise (supra) be-

ing drawn in a genuine and voluntary manner, without any coercion or undue influence.

4. I have heard counsel for the parties and gone through the case file.

5. Since the present FIR is the outcome of a matrimonial discord be-

tween the petitioner and the respondent No.2, and, now the matter has been ami-

cably settled between the parties, therefore, keeping in view the betterment of both the families and the society, this Court deems it just and appropriate to bury all the disputes inter se the petitioner and the respondent No.2, through quashing the present FIR, which in fact ensued from a matrimonial dispute.

6. Gainful reference, in the above regard, can be made to the judgment rendered by the Hon'ble Supreme Court, in the case of "Narinder Singh and others Vs. State of Punjab and other", (2014) 6 Supreme court cases 466. The relevant paragraph of this judgment is extracted hereinafter:-

29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while ac-

cepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the crimi-

2 of 7 Neutral Citation No:=2024:PHHC:111389 nal proceedings:

29.1. Power conferred under Section 482 of the Code is to be distin-

quashed from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution. 29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in a such cases would be to secure: (i) ends of justice, or

(ii) to prevent abuse of the process of any court. While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives.

29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves. 29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases.

29.6. Offences under Section 307 IPC would fall in the category of 3 of 7 Neutral Citation No:=2024:PHHC:111389 heinous and serious offences and therefore are to be generally treated as crime against the society and not against the individual alone. However, the High Court would not rest its decision merely because there is a mention of Section 307 IPC in the FIR or the charge is framed under this provision. It would be open to the High Court to examine as to whether incorporation of Section 307 IPC is there for the sake of it or the prosecution has collected sufficient evidence, which if proved, would lead to proving the charge under Section 307 IPC. For this purpose, it would be open to the High Court to go by the nature of injury sustained, whether such injury is inflicted on the vital/delicate parts of the body, nature of weapons used, etc. Medical report in respect of injuries suffered by the victim can generally be the guiding factor. On the basis of this prima facie analysis, the High Court can examine as to whether there is a strong possibility of conviction or the chances of conviction are remote and bleak. In the former case it can refuse to accept the Settlement and quash the criminal proceedings whereas in the latter case it would be permissible for the High Court to accept the plea compounding the offence based on complete settlement between the parties. At this stage, the Court can also be swayed by the fact that the settlement between the parties is going to result in harmony between them which may improve their future relationship. 29.7. While deciding whether to exercise its power under Section 482 of the Code or not, timings of settlement play a crucial role. Those cases where the settlement is

arrived at immediately after the alleged commission of offence and the matter is still under investigation, the High Court may be liberal in accepting the settlement to quash the criminal proceedings/investigation. It is because of the reason that at this stage the investigation is still on and even the charge-sheet has not been filed. Likewise, those cases where the charge is framed but the evidence is yet to start or the evidence is still at infancy stage, the High Court can show benevolence in exercising its powers favourably, but after prima facie assessment of the circumstances/material mentioned above. On the other hand, where 4 of 7 Neutral Citation No:=2024:PHHC:111389 the prosecution evidence is almost complete or after the conclusion of the evidence the matter is at the stage of argument, normally the High Court should refrain from exercising its power under Section 482 of the Code, as in such cases the trial court would be in a position to decide the case finally on merits and to come to a conclusion as to whether the offence under Section 307 IPC is committed or not. Similarly, in those cases where the conviction is already recorded by the trial court and the matter is at the appellate stage before the High Court, mere compromise between the parties would not be a ground to accept the same resulting in acquittal of the offender who has already been convicted by the trial court. Here charge is proved under Section 307 IPC and conviction is already recorded of a heinous crime and, therefore, there is no question of sparing a convict found guilty of such a crime."

7. The above principle gets reiterated in the case of "State of Madhya Pradesh vs. Laxmi Narayan and others (2019)", 5 Supreme court cases 688, wherein, the Hon'ble Supreme Court has held as under:-

"15.1 That the power conferred under Section 482 of the Code to quash the criminal proceedings for the non-compoundable offences under Section 320 of the Code can be exercised having overwhelmingly and predominantly the civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes and when the parties have resolved the entire dispute amongst themselves;

15.2. Such power is not to be exercised in those prosecutions which involved heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society;

15.3 Similarly, such power is not to be exercised for the offences under the special statutes like Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between

5 of 7 Neutral Citation No:=2024:PHHC:111389 between the victim and the offender;

15.4 Offences under Section 307 IPC and the Arms Act etc. would fall in the category of heinous and serious offences and therefore are to be treated as crime against the society and not against the individual alone, and therefore, the criminal proceedings for the offence under Section 307 IPC and/or the Arms Act etc. which have a serious

impact on the society cannot be quashed in exercise of powers under Section 482 of the Code, on the ground that the parties have resolved their entire dispute amongst themselves. However, the High Court would not rest its decision merely because there is a mention of Section 307 IPC in the FIR or the charge is framed under this provision. It would be open to the High Court to examine as to whether incorporation of Section 307 IPC is there for the sake of it or the prosecution has collected sufficient evidence, which if proved, would lead to framing the charge under Section 307 IPC. For this purpose, it would be open to the High Court to go by the nature of injury sustained, whether such injury is inflicted on the vital/delegate parts of the body, nature of weapons used etc. However, such an exercise by the High Court would be permissible only after the evidence is collected after investigation and the charge sheet is filed/charge is framed and/or during the trial. Such exercise is not permissible when the matter is still under investigation. Therefore, the ultimate conclusion in paragraphs 29.6 and 29.7 of the decision of this Court in the case of Narinder Singh (supra) should be read harmoniously and to be read as a whole and in the circumstances stated hereinabove".

8. Furthermore, the Hon'ble Supreme Court in Shakuntla Sawh-

ney (Mrs) Vs. Kaushalya (Mrs.) and others (1980) 1 SCC 63, speaking through Justice V.R. Krishna Iyer, has held as under:-

"4.The finest hour of justice arrives propitiously when parties, despite falling apart, bury the hatchet and weave a sense of fellowship or reunion....."

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9. Considering the facts of the present case as well as the principle of law laid down by Hon'ble Supreme Court, it would be futile to drag the present proceedings, as continuation of the criminal proceedings, despite settlement and compromise, would amount to abuse of process of law. Accordingly, in the light of the hereinabove recorded aspects and considering the fact that the offences, for which the petitioner/accused has been charged, are not grave in nature, as also in view of the law laid down in Gian Singh Vs. State of Punjab and another, 2012 (4) RCR (Criminal) 543 and Kulwinder Singh and others Vs. State of Punjab 2007(3) RCR (Criminal) 1052, the present petition for quashing the FIR (supra) is hereby allowed. The FIR No.512 dated 04.09.2022 (Annexure P1), under Sections 323, 506, 34 of the IPC, 1860, registered at P.S. Shivaji Colony, Rohtak, along with all the consequential proceedings arising therefrom, is hereby quashed, on the basis of Compromise/Joint Statement dated 14.05.2024 (Annexure P2), as recorded in proceedings under Section 13-B of the Hindu Marriage Act, 1955, subject to costs of Rs.5,000/- being forthwith deposited by the petitioner in the District Legal Services Authority concerned.

(KULDEEP TIWARI)

August 28, 2024
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JUDGE

Whether speaking/reasoned	:	Yes/No
Whether Reportable	:	Yes/No

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